

PCL325912 L.A. COMMERCIAL GROUP, INC., a Corporation vs. MOSQUEDA, CHRISTINE MARIE et al

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-07-07

Motion: Motion to Enforce Settlement as Judgment

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Re: L.A. COMMERCIAL GROUP, INC., a Corporation vs. MOSQUEDA, CHRISTINE MARIE et al

Case No.: PCL325912

Date: July 7, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Motion to Enforce Settlement as Judgment

Tentative Ruling: To grant the motion as requested.

Facts

In this common counts and breach of contract action, Plaintiff filed a notice of conditional settlement on November 26, 2025.

Defendants were served with the summons and complaint, but did not file an answer. Entry of default occurred on November 7, 2025, but no default judgment has been entered in this matter.

On or about November 24, 2025, the parties entered into a stipulation to resolve this matter for a total of \$7,596.87 due as follows:

\$2,000.00 due on or before November 19, 2025

\$2,000.00 due on or before December 20, 2025

\$2,000.00 due on or before January 20, 2026

\$1,596.87 due on or before February 20, 2026

In the event of default, the stipulation indicates that Plaintiff is entitled to entry of judgment for the judgment amount noted above, less any credit, plus attorneys' fees and costs incurred as to this motion.

The stipulation indicates that the Court shall retain jurisdiction under Code of Civil Procedure section 664.6. However, the Court notes that this matter has not been dismissed and the Court has not lost jurisdiction over the parties and this matter.

Plaintiff indicates that Defendants have made payments totaling \$4,000.

Authority and Analysis

Section 664.6 (a) states:

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

"The court's retention of jurisdiction under section 664.6 includes jurisdiction over both the parties and the case itself, that is, both personal and subject matter jurisdiction." (Lofton v. Wells Fargo Home Mortgage (2014) 230 Cal.App.4th 1050, 1061.) "Section 664.6 permits the trial court judge to enter judgment on a settlement agreement without the need for a new lawsuit." (Osuni v. Sutton (2007) 151 Cal.App.4th 1355, 1360.)

As indicated above, the Court retains jurisdiction over the parties and this matter and therefore is prepared to "enter judgment pursuant to the terms of the settlement."

Defendant appears to have breached the settlement, based upon the declaration of Plaintiff's counsel and, the Court, having no opposition, grants the motion and enters judgment in the amount requested of \$4,056.87, consisting of the principal amount of \$7,596.87, plus attorneys' fees of \$400.00, plus costs of \$60.00, less \$4,000 in credits for payments made.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.